

Opinion of the Court

prosecutions? And what about the fact, too, that some studies suggest that the elimination of unanimity has only a small effect on the rate of hung juries?⁴⁵ Or the fact that others profess to have found that requiring unanimity may provide other possible benefits, including more open-minded and more thorough deliberations?⁴⁶ It seems the *Apodaca* plurality never even conceived of such possibilities.

Our real objection here isn't that the *Apodaca* plurality's cost-benefit analysis was too skimpy. The deeper problem is that the plurality subjected the ancient guarantee of a unanimous jury verdict to its own functionalist assessment in the first place. And Louisiana asks us to repeat the error today, just replacing *Apodaca*'s functionalist assessment with our own updated version. All this overlooks the fact that, at the time of the Sixth Amendment's adoption, the right to trial by jury *included* a right to a unanimous verdict. When the American people chose to enshrine that right in the Constitution, they weren't suggesting fruitful topics for future cost-benefit analyses. They were seeking to ensure that their children's children would enjoy the same hard-won liberty they enjoyed. As judges, it is not our role to reassess whether the right to a unanimous jury is "important enough" to retain. With humility, we must accept that this right may serve purposes evading our current notice. We are entrusted to preserve and protect that liberty, not balance it away aided by no more than social statistics.⁴⁷

⁴⁵ See H. Kalven & H. Zeisel, *The American Jury* 461 (1966); Diamond, Rose, & Murphy, *Revisiting the Unanimity Requirement: The Behavior of the Non-unanimous Civil Jury*, 100 Nw. U. L. Rev. 201, 207–208 (2006).

⁴⁶ Devine et al., *Jury Decision Making: 45 Years of Empirical Research on Deliberating Groups*, 7 Psych. Pub. Pol'y & L. 622, 669 (2001); R. Hastie, S. Penrod, & N. Pennington, *Inside the Jury* 115, 164–165 (1983); Hans, *The Power of Twelve: The Impact of Jury Size and Unanimity on Civil Jury Decision Making*, 4 Del. L. Rev. 1, 24–25 (2001).

⁴⁷ The dissent seems to suggest that we must abandon the Sixth Amendment's historical meaning in favor of *Apodaca*'s functionalism because a parade of horrors would follow otherwise. In particular, the dissent re-